

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1577

By: Lawson

AS INTRODUCED

An Act relating to state Medicaid program; requiring coverage of medically necessary donor human milk-derived products under certain conditions; requiring certain reimbursement; directing promulgation of rules; authorizing adoption of certain policy or procedure; directing the Oklahoma Health Care Authority to seek certain federal approval; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 5026.2 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. The Oklahoma Health Care Authority shall, to the extent permissible under federal law and subject to the federal approval described in subsection D of this section, provide Medicaid coverage for medically necessary donor human milk-derived products in an inpatient or outpatient setting for an infant whose gestationally corrected age is under twelve (12) months; provided:

1. A physician, physician assistant, or Advanced Practice Registered Nurse licensed in this state signs an order stating that

1 donor human milk-derived products are medically necessary for the
2 infant Medicaid beneficiary due to any of the following:

- 3 a. the infant has a birth weight of less than one
4 thousand five hundred (1,500) grams or an infant body
5 weight below healthy levels, as determined by the
6 ordering provider,
- 7 b. the infant's gestational age at birth was thirty-four
8 (34) weeks or less, or
- 9 c. the infant has any congenital or acquired condition
10 for which the ordering provider determines that the
11 use of donor human milk-derived products is medically
12 necessary and will support the treatment and recovery
13 of the infant; and

14 2. The donor human milk-derived products adhere to such quality
15 standards as may be required by the Oklahoma Health Care Authority
16 Board.

17 B. Reimbursement under subsection A of this section for donor
18 human milk-derived products for an infant in an inpatient setting
19 shall be provided separately from the existing hospital payment for
20 inpatient services.

21 C. The Board shall promulgate rules to implement the provisions
22 of this section, and may adopt a policy or procedure to implement
23 the provisions of this section while in the process of promulgating
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1 rules; provided, such policy or procedure shall be posted on the
2 Internet website of the Authority prior to adoption of the policy.

3 D. The Authority shall seek any federal approval necessary to
4 implement this section.

5 SECTION 2. This act shall become effective November 1, 2025.

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